Checklist of Required Initial Evidence for Form I-140 (for informational purposes only)

Please do not submit this checklist with your Form I-140. The checklist is an optional tool to use as you prepare your form, but does not replace statutory, regulatory, and form instruction requirements. We recommend that you review these requirements before completing and submitting your form. **Do not send original documents unless specifically requested in the form instructions or applicable regulations.** You may view the form instructions on our Form I-140 page.

If you submit any documents (copies or original documents, if requested) in a foreign language, you must include a full English translation along with a certification from the translator verifying that the translation is complete and accurate, and that they are competent to translate from the foreign language into English.

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General Requirements

E-11 Person with Extraordinary Ability in the Sciences, Arts, Education, Business, or Athletics

Did you provide the following?

- Evidence the person is coming to the United States to continue work in the area of expertise; and
- Evidence the person has sustained national or international acclaim, and the achievements are recognized in the field of expertise. This evidence should include:
  - Evidence of a one-time achievement (that is, a major, internationally recognized award); or
  - At least three of the following:
    - Receipt of lesser nationally or internationally recognized prizes or awa
      field of endeavor;

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- Membership in associations in the field, which require outstanding achievements as judged by recognized national or international experts;
- Published material about the person in professional or major trade publications or other major media;
- Participation on a panel or individually as a judge of others' work in the field or a related field;
- Original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field;
- Authorship of scholarly articles in the field in professional or major trade publications or other major media;
- Display of the person's work at artistic exhibitions or showcases;
- Evidence the person has performed in a leading or critical role for organizations or establishments that have distinguished reputations;
- Evidence the person has commanded a high salary or other significantly high pay for services; or
- Evidence of commercial successes in the performing arts as shown by box office receipts or music or video sales.

If the above standards do not readily apply to the person's occupation, you may submit comparable evidence.

For more information on Extraordinary Ability Classification, see the USCIS Policy Manual.

U.S. Employer Filing for an E-12 Outstanding Professor or Researcher

Did you provide the following?

- Evidence the beneficiary has at least three years of experience in teaching and/or research in the academic field;
- If you are a university or other institution of higher education, an offer of employment in the form of a letter indicating that you intend to employ the beneficiary a tenured or tenure-track position as a professor or in a permanent position as a researcher in the beneficiary's academic field
- If you are a department, division, or institute of a private employer:
  - An offer of employment in the form of a letter indicating you intend to employ the foreign national in a permanent research position in the beneficiary's academic field;
  - Evidence you employ at least three full-time researchers (other than the beneficiary); and
  - Evidence you have achieved documented accomplishments in an academic field.

- Evidence the professor or researcher is recognized internationally as outstanding in the academic field specified in the petition. Include at least two of the following:
  - Receipt of major prizes or awards for outstanding achievement in the academic field;
  - Membership in associations in the academic field that require outstanding achievements of their members;
  - Published material in professional publications written by others about the beneficiary's work in the academic field;
  - Participation on a panel or individually as the judge of others' work in the same or a related academic field;
  - Original scientific or scholarly research contributions to the academic field; or
  - Authorship of scholarly books or articles in scholarly journals with international circulation in the academic field.

  If the above standards do not readily apply to the beneficiary's occupation, you may submit comparable evidence.

For more information on Outstanding Professors and Researchers, see the USCIS Policy Manual.

U.S. Employer Filing for an E-13 Multinational Executive or Manager

Did you provide the following?

- A statement from you or an authorized official demonstrating that:
  - The beneficiary has been employed as an executive or manager abroad by a qualifying related entity for at least one year in the three-year period before filing Form I-140 or the most recent nonimmigrant admission in an executive or managerial capacity;
  - You have been doing business in the U.S. for at least one year;
  - You have the ability to pay the beneficiary's salary;
  - A qualifying related entity abroad currently continues to do business; and
  - The beneficiary will work in the United States in a managerial or executive capacity. You should include a description of the duties they will perform.

E-21 Professional Who Holds an Advanced Degree or Person Who has Exceptional Ability and Seeks a Labor Certification Waiver in the National Interest, Commonly Called a National Interest Waiver (NIW)

Did you provide the following?

- If the person for whom the benefit is sought holds an advanced degree:
  - An official academic record showing they have a U.S. advanced degree or a foreign equivalent degree; or
  - An official academic record showing they have a U.S. baccalaureate degree or a foreign equivalent degree and letters from current or former employers showing they have at least five years of progressive post-baccalaureate experience in the specialty.
- If the person is seeking to qualify as having exceptional ability in the sciences, arts, or business, at least three of the following:
  - An official academic record showing they have a degree, diploma, certificate, or similar award from a college, university, school, or other institution of learning relating to the area of exceptional ability;
  - A letter from a current or former employer showing the person has at least 10 years of full-time experience in the occupation;
  - A license to practice the profession or certification for a particular profession or occupation;
  - Evidence the person has commanded a salary or other pay for services that demonstrates exceptional ability;
  - Evidence of membership in professional associations; or
  - Evidence of recognition for achievements and significant contributions to the industry or field by peers, governmental entities, or professional or business organizations.

  If the above standards do not readily apply to the person's occupation, you may submit comparable evidence to establish the person's exceptional ability.

- If you are seeking a waiver of the job offer/labor certification requirement:
  - Appendix A of the Application for Permanent Employment Certification, Form ETA-9089 (PDF) and the Form ETA-9089 Final Determination (PDF), which must be signed by the employer/petitioner, the attorney/agent (if applicable), and the beneficiary/self-petitioner; and
  - Evidence showing the waiver would be in the national interest, including:
    - How the person's proposed endeavor has both substantial merit and national importance;
    - How the person is well-positioned to advance the proposed endeavor; and
    - How it would be beneficial to the United States to waive the job offer, and thus the labor certifications requirements.

For more information on National Interest Waivers, see the USCIS Policy Manual.

E-21 Immigrant Physician Who Seeks a Waiver of the Labor Certification Based Upon Service in a Medically Underserved Area or Veterans Administration (VA) Facility

Did you provide the following?

- An official academic record showing the physician has a U.S. advanced degree or a foreign equivalent degree;
- Evidence of a full, unrestricted medical license for the state of intended employment or eligibility for such license;
- Employment contract or employment commitment letter;
- Evidence the physician will provide full-time clinical medical service:
  - In a geographic area or areas designated by the Secretary of Health and Human Services (HHS) as having a shortage of health care professionals and in a medical specialty that is within the scope of the HHS Secretary's designation for the geographic area or areas; or
  - In a facility under the jurisdiction of the Secretary of Veteran's Affairs;
- Public interest letter
- Evidence for foreign nationals who are graduates of medical schools not accredited by the secretary of Education:
  - Evidence of having passed Parts I and II of the National Board of Medical Examiners Examination (NBME) (or an equivalent examination as determined by the secretary of HHS);
  - Competence in oral and written English (Educational Commission for Foreign Medical Graduates (ECFMG) certification); and
- Evidence of an approved Form I-601, Application for Waiver of Grounds of Inadmissibility, if the physician was in J-1 status in the U.S. and receiving medical training.

For more information on the Physician National Interest Waiver, see the USCIS Policy Manual.

U.S. Employer (Business or an Individual) Filing for an E-21 Member of the Professions Holding an Advanced Degree or a Person of Exceptional Ability; E-32 Professional; E-31 Skilled Worker; or EW-3 Unskilled (Other) Worker

Did you provide the following?

- A labor certification that has been certified by the Department of Labor in the form of a properly signed Form ETA-9089 Final Determination, Application for Permanent Employment Certification (PDF).
- If you are filing for a member of the professions holding an advanced degree:
  - An official academic record showing the beneficiary has a U.S. advanced degree or a foreign equivalent degree; or
  - An official academic record showing they have a U.S. baccalaureate degree or a foreign equivalent degree and letters from current or former employers showing they have at least five years of progressive post-baccalaureate experience in the specialty; and
  - Evidence showing they have any required experience or special skills.

For more information on Advanced Degree Professionals, see the USCIS Policy Manual.

- If filing for a person of exceptional ability:
  - Evidence showing the beneficiary qualifies as a person of exceptional ability through the provision of three of six forms of evidence identified above (under the section for NIWs).

For more information on Advanced Degree Professionals, see the USCIS Policy Manual.

- If filing for a professional:
  - An official college or university record showing the beneficiary holds a United States baccalaureate degree or a foreign equivalent degree;
  - Evidence showing they are a member of the professions; and
  - Evidence demonstrating they have any required experience or special skills.

For more information on professionals, see the USCIS Policy Manual.

- If filing for a skilled worker:
  - Evidence the beneficiary meets the educational, training or experience, and any other requirements of the individual labor certification (the minimum requirement is at least two years of training or experience). Relevant post-secondary education may substitute for training.

For more information on skilled workers, see the USCIS Policy Manual.

- If filing for an unskilled (other) worker:
  - Evidence the beneficiary meets any educational, training, and experience, and other requirements of the labor certification. The minimum requirements are less than two years of training or experience.

For more information on unskilled workers, see the USCIS Policy Manual.

Person Belonging to a U.S. Professional Athletic Team and is Filing as an E-21 Alien of Exceptional Ability as a Professional Athlete

Did you provide the following?

- A certified and properly signed Form ETA-9089 Final Determination, Application for Permanent Employment Certification (PDF);
- Evidence showing the beneficiary qualifies as a person of exceptional ability, as articulated under the section on national interest waivers;
- Evidence showing you are a team that is a member of an association of six or more professional sports teams whose total combined revenues exceed $10 million per year, if the association governs the conduct of its members and regulates the contests and exhibitions in which its member teams regularly engage; or
- Evidence showing you are a minor league team that is affiliated with such an association.

For more information on Professional Athletes, see the USCIS Policy Manual.

U.S. Employer Seeking Schedule A, Group I Designation for an E-21 Member of the Professions Holding an Advanced Degree (Physical Therapist), or an E-32 Professional or E-31 Skilled Worker Professional Nurse

Did you provide the following?

- For all beneficiaries:
  - A properly filed Form I-140, Immigrant Petition for Alien Workers, with appropriate filing fees; and
  - Evidence showing they qualify for the classification sought (such as holding either an advanced degree, baccalaureate degree, or requisite two years of education) and any additional requirements specified on Form ETA 9089, Application for Permanent Employment Certification (PDF); Form ETA-9089, Final Determination signed by the employer, the employers attorney/authorized representative (if applicable), and the beneficiary, and Form ETA-9141, Application for Prevailing Wage Determination. (PDF)
- For beneficiaries who will be employed as physical therapists:
  - Evidence showing the beneficiary holds a permanent license to practice in the state of intended employment; or

- A letter or statement, signed by an authorized state physical therapy licensing official, stating the beneficiary is qualified to take the state's written licensing examination for physical therapists.

- For beneficiaries who will be employed as registered/professional nurses:
  - Evidence showing they received a certificate from the Commission on Graduates of Foreign Nursing Schools (CGFNS);
  - Evidence showing they hold a full, unrestricted, permanent license to practice professional nursing in the state of intended employment; or
  - Evidence showing they passed the National Council Licensure Examination for Registered Nurses (NCLEX-RN), administered by the National Council of State Boards of Nursing.
- For the employers:
  - An uncertified Form ETA-9089, Application for Permanent Employment Certification (PDF), Appendix A (PDF), and Form ETA-9089 Final Determination (PDF), with the employer and beneficiary's original signatures (along with any representative's signature, if relevant);
  - A certified Form ETA -9141, Application for Prevailing Wage Determination (PDF), issued by the Department of Labor;
  - Evidence showing you notified your bargaining representative that you filed the Application for Permanent Employment Certification; or evidence showing you posted a notice at your facility or location of the employment that you filed the Application for Permanent Employment Certification, if there is no bargaining representative. If posting a notice at your facility or location of the employment, you must post the notice for at least 10 consecutive business days. The notice of filing must:
    - State you are posting the notice because you filed an application for permanent alien labor certification for the relevant job opportunity;
    - State any person may provide evidence regarding the application to the DOL certifying officer;
    - Provide the address of the appropriate DOL certifying officer; and
    - Be posted between 30 and 180 days before filing the petition with USCIS.
  - Copies of all in-house media concerning the job opening, whether electronic or printed; and
  - All other documentation required to show eligibility for the employment-based immigrant visa classification sought, such as evidence of its ability to pay.

For more information on Schedule A, Group I designation, see the USCIS Policy Manual.

U.S. Employer Filing for an E-21 Member of The Professions Holding an Advanced Degree or a Person of Exceptional Ability, or E-32 Professional and are

Seeking Schedule A, Group II (Exceptional Ability as Defined by DOL in the Sciences, Arts, And Performing Arts) Certification

Did you provide the following?

- For all beneficiaries:
  - Evidence showing they qualify for the classification sought (such as holding either an advanced degree or foreign equivalent degree, the requisite qualifications for exceptional ability listed above, or a baccalaureate degree or foreign equivalent degree);
- For exceptional ability in the sciences or arts as defined by DOL:
  - Widespread acclaim and international recognition from experts in the beneficiary's field;
  - Documentation showing the beneficiary's work in that field during the past year did (and their intended work in the United States will) require exceptional ability; and
  - Two of the following types of evidence:
    - Documentation of the beneficiary's receipt of internationally recognized prizes or awards for excellence in the field for which certification is sought;
    - Documentation of the beneficiary's membership in international associations in the field for which certification is sought, which require outstanding achievement of their members, as judged by recognized international experts in their disciplines or fields;
    - Material published in professional publications about the beneficiary's work in the field for which certification is sought, which includes the title, date, and author of such published material;
    - Evidence of the beneficiary's participation on a panel, or individually, as a judge of the work of others in the same or similar field of specialization to that for which certification is sought;
    - Evidence of the beneficiary's original scientific or scholarly research contributions of major significance in the field for which certification is sought;
    - Evidence of the beneficiary's authorship of published scientific or scholarly articles in the field for which certification is sought, in international professional journals or professional journals with an international circulation;
    - Evidence of the display of the beneficiary's work, in the field for which certification is sought, at artistic exhibitions in more than one country.
- For exceptional ability in the performing arts:
  - Evidence the beneficiary's work experience during the past 12 months did require and the beneficiary's intended work in the United States will require exceptional ability; and
  - Evidence of the beneficiary's exceptional ability, such as:

    - Documentation attesting to the current widespread acclaim and international recognition accorded to the beneficiary, and receipt of internationally recognized prizes or awards for excellence;
    - Published material by or about the beneficiary, such as critical reviews or articles in major newspapers, periodicals, and/or trade journals, which includes the title, date, and author of such material;
    - Documentary evidence of earnings corresponding with the claimed level of ability;
    - Playbills and star billings;
    - Documents attesting to the outstanding reputation of theaters, concert halls, night clubs, and other establishments in which the beneficiary has appeared or is scheduled to appear; and/or
    - Documents attesting to the outstanding reputation of theaters or repertory companies, ballet troupes, orchestras, or other organizations in which or with which the beneficiary has performed during the past year in a leading or starring capacity.
- For employers:
  - A completed Form ETA-9089, Application for Permanent Employment Certification (PDF), Appendix A (PDF), and signed Final Determination (PDF);
  - A certified Form ETA 9141, Prevailing Wage Determination (PDF), issued by the Department of Labor (DOL); and
  - Evidence showing you notified the bargaining representative that you filed Form ETA 9089, Application for Permanent Employment Certification (PDF), if applicable; or
  - Copies of any and all in-house media concerning the job opening, whether electronic or printed; and
  - Evidence showing you posted a notice at your facility or location of the employment that you filed Form ETA 9089, Application for Permanent Employment Certification (PDF), if there is no bargaining representative. If posting a notice at your facility or location of the employment, you must post the notice for at least 10 consecutive business days. The notice of filing must:
    - State you are posting the notice because you filed an application for permanent alien labor certification for the relevant job opportunity;
    - State any person may provide evidence regarding the application to the DOL certifying officer;
    - Provide the address of the appropriate certifying officer; and
    - Be posted between 30 and 180 days before filing the petition with USCIS.

For information about Schedule A, Group II, see the USCIS Policy Manual.

U.S. Employer Filing for an EW-3 Unskilled (Other) Worker to Perform Services as a Sheepherder Without Obtaining a Labor Certification From the Department of Labor First

Did you provide the following?

- A completed Form ETA-9089, Application for Permanent Employment Certification (PDF), Appendix A (PDF), and signed Final Determination;
- A certified Form ETA 9141, Prevailing Wage Determination (PDF), issued by the Department of Labor (DOL);
- Signed letters from each of the foreign national's U.S. employers during the preceding 36 months, attesting they worked in the United States lawfully and continuously as a sheepherder for at least 33 of the immediately preceding 36 months; and
- Evidence showing you notified the bargaining representative that you filed Form ETA 9089, Application for Permanent Employment Certification (PDF), if applicable; or
- Copies of any and all in-house media concerning the job opening, whether electronic or printed; and
- Evidence showing you posted the notice at your facility or location of the employment that you filed Form ETA 9089, Application for Permanent Employment Certification (PDF), if there is no bargaining representative. If you are posting at your facility or location of the employment, you must post the notice for at least 10 consecutive business days. The notice of filing must:
  - State you are providing the notice because you filed an application for permanent alien labor certification for the relevant job opportunity;
  - State any person may provide evidence regarding the application to the DOL certifying officer;
  - Provide the address of the appropriate certifying officer; and
  - Be posted between 30 and 180 days before filing the application.

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